

GENERAL NOTES

A number of provisions within *Part C Residential Development* refer to the Planning Principles based on cases from the NSW Land & Environment Court. More information on Planning Principles and the respective cases can be found at:

http://www.lec.justice.nsw.gov.au/Pages/practice_procedure/principles/planning_principles.aspx

State Legislation Affecting Residential Development

The controls within this Part should be read in conjunction with *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* (Codes SEPP) and the *Waverley Local Environmental Plan* (WLEP), which define what can be carried out as exempt or complying development and override these controls.

Low Rise Medium Density Housing Code – the Department of Planning & Environment has prepared legislation and a Low Rise Medium Density Design Guide for Development Applications. For the purposes of the Low Rise Medium Density Housing Code, Part C3 of this DCP applies.

State Environmental Planning Policy (Housing) 2021 and the associated *Apartment Design Guide (ADG)* aim to improve the design quality of residential apartment development. The policy applies to the residential components of residential flat building, shop top housing and mixed-use developments that are three or more storeys, and contain four or more dwellings.

Inter-War Buildings

Part B16 Inter-War Buildings applies to all Inter-War buildings and is to be read in conjunction with this Part and the *Waverley Inter-War Building Design Guidelines*.

An Inter-War building is a building constructed in the period from c.1914 to c.1940. In a case of contention as to whether Part B17 should apply to a development, the burden of proof is on the applicant to demonstrate that a building is not an Inter-War building.

Special Character Areas

Refer to Part E4 for Special Character Areas which may apply to certain residential properties.